

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Henry Oliver	Team: Squad #03	CCRB Case #: 201805781	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/04/2018 7:00 PM	Location of Incident: Nostrand Avenue and Herkimer Place	18 Mo. SOL 1/4/2020	Precinct: 79		
Date/Time CV Reported Sat, 07/07/2018 8:10 AM	CV Reported At: Other City agency	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/16/2018 1:59 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Mark Delossantos	03955	951672	079 PCT
2. POF Jena Leocadio	05460	956044	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Greydy Mercedes	09619	956926	079 PCT
2. POM Patrick Foley	18425	958596	079 PCT
3. POM Ronald Chiriboga	13300	955814	028 PCT
4. POM Leo Bonacasa	12994	955762	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Mark Delossantos	Abuse: Sergeant Mark Delossantos seized #§ 87(2)(b)s property.	A . Exonerated
B . POF Jena Leocadio	Abuse: Police Officer Jena Leocadio searched the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 7, 2018, § 87(2)(b) filed this complaint, over the phone, with 311, and the complaint was forwarded to IAB. On July 16, 2018, IAB referred the complaint to the CCRB via log § 87(2)(b).

On July 4, 2018, at approximately 7:00 p.m., § 87(2)(b) was standing with his friend, § 87(2)(b) at the intersection of Herkimer Place and Nostrand Avenue in Brooklyn. § 87(2)(b) had been at the location for approximately two hours, when Sergeant Mark Delossantos, PO Greydy Mercedes, PO Jena Leocadio, PO Patrick Foley, PO § 87(2)(b) Chiriboga, and PO Leo Bonacasa, of the 79th Precinct, approached him for allegedly gambling. § 87(2)(b) was placed in handcuffs, placed inside of a police vehicle, and transported to the 79th Precinct stationhouse. Sgt. Delossantos then instructed PO Leocadio to transport § 87(2)(b)'s vehicle to the stationhouse (**Allegation A: Abuse of Authority, exonerated**). Before transporting the vehicle, PO Leocadio allegedly searched it at the incident location (**Allegation B: Abuse of Authority, substantiated**). § 87(2)(b) was later released from the stationhouse with a summons for § 87(2)(b). § 87(4-b), § 87(2)(g)

Two body-worn camera (BWC) videos were obtained in relation to the incident, however the videos do not capture the incident in question, § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Mark Delossantos seized § 87(2)(b)'s property.

It is undisputed that § 87(2)(b) was stopped, frisked, and searched at the incident location, was transported to the 79th Precinct stationhouse, and was later released with a summons for § 87(2)(b). § 87(2)(b) was considered to be under arrest at the time he was removed from the incident location. § 87(2)(g)

In his CCRB statement, § 87(2)(b) explained that his vehicle was parked next to where he was arrested. He was told he was being arrested for gambling, and was escorted to a police vehicle. Before entering the vehicle, § 87(2)(b) asked officers to retrieve his car keys from his pocket, and give them to § 87(2)(b). An unidentified officer removed his keys from his pocket, but gave them to PO Leocadio. § 87(2)(b) observed PO Leocadio enter his vehicle, but was not present at the time the vehicle was removed. § 87(2)(b) noted that there were no issues with his license, insurance, and registration for the vehicle, which is registered in his name.

In his CCRB statement, Sgt. Delossantos indicated that it was his decision to remove the vehicle from the location, and that he gave PO Leocadio instructions to transport the vehicle to the 79th Precinct stationhouse. § 87(2)(g). Sgt. Delossantos noted that § 87(2)(b) told him that his vehicle was parked in a “bad spot,” and requested that his keys and car be left in the care of § 87(2)(b). Sgt. Delossantos did not allow § 87(2)(b)'s vehicle to be placed in § 87(2)(b)'s possession, because he did not want to be responsible for any issues that arose from placing the vehicle in § 87(2)(b)'s care. Sgt. Delossantos told § 87(2)(b) that his vehicle would be transported to the stationhouse, and if he had no open warrants, he would have access to his vehicle as soon as he was released. § 87(2)(g)

§ 87(2)(b)'s vehicle was parked illegally in a "No Standing No Parking," zone reserved for post office vehicles. This was indicated by a sign at the intersection where § 87(2)(b) was parked. Sgt. Delossantos also indicated that because the incident location has a high occurrence of theft and car break-ins, it was in § 87(2)(b)'s best interest to transport his vehicle to the stationhouse.

PO Leocadio's statement is consistent with Sgt. Delossantos' in that she noted that Sgt. Delossantos instructed her to take the vehicle back to the stationhouse. She did not have a conversation with Sgt. Delossantos about why he gave the command to have the vehicle removed, and she could not recall if the vehicle was parked illegally at that time. While § 87(2)(b) was being escorted, he asked why his vehicle was being removed from the location. PO Leocadio indicated that it was because he was being arrested.

PO Mercedes' statement is consistent with Sgt. Delossantos' statement in that he noted it was Sgt. Delossantos' decision to transport the vehicle in order to safeguard it. It is inconsistent in that he noted § 87(2)(b) requested that his car be taken back to the stationhouse for safekeeping.

PO Chiriboga did not recall why § 87(2)(b)'s vehicle was brought to the stationhouse, or whose decision it was to transport the car, but believed that there was a sign that read "no standing" where the car was parked. § 87(2)(b) did not make any statements to PO Chiriboga as to what he wanted to happen to his car.

PO Foley was aware that § 87(2)(b)'s vehicle was transported to the stationhouse, but did not know who transported the vehicle or why this action was taken. He only spoke to Sgt. Delossantos regarding § 87(2)(b)'s vehicle, which he transported back to the stationhouse.

An image of the incident location captured from Google Street View shows a traffic sign, located on the corner of Herkimer Place, that reads "No Parking Anytime," with arrows pointing in both directions. This confirms that § 87(2)(b)'s vehicle was parked illegally at the location. The image was captured in November of 2017.

Patrol Guide Procedure 218-12 states that a vehicle may be safeguarded at the officer's command for forty-eight hours when not required as evidence (BR 01.)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation A** be *exonerated*.

Allegation (B) Abuse of Authority: PO Jena Leocadio searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Leocadio searched § 87(2)(b)'s vehicle. § 87(2)(b)

In his CCRB statement, as stated above, § 87(2)(b) explained that before being placed in a police vehicle, an unidentified officer removed his keys from his pocket, and gave them to PO Leocadio. § 87(2)(b) observed PO Leocadio open his car door, and sit in the driver's seat. PO Leocadio opened the glove compartment, and looked inside the center console. He could not see her open any other compartments, but saw her searching other areas of the vehicle.

In her CCRB Statement, PO Leocadio indicated that she came into possession of § 87(2)(b)'s keys after he was frisked, but did not recall who handed her the keys. She entered § 87(2)(b)'s car, and searched the glove compartment, the center console, the rear seats, underneath the seats of the vehicle, and the pockets behind the front seats. PO Leocadio noted that she was searching the vehicle for drugs and weapons, and did not have a specific drug or weapon she was looking for. She did not make any observations regarding § 87(2)(b)'s behavior or observations of his person that lead her to believe that he was in possession of any contraband. When asked why she searched for contraband in the vehicle, she noted that individuals who gamble sometimes sell drugs and are in possession of weapons. At no point did another officer indicate that § 87(2)(b) was in possession of drugs or contraband, or that such items may be present in his vehicle. PO Leocadio did not take inventory of her search of § 87(2)(b)'s vehicle, because he was not arrested, and inventory is only conducted when a vehicle is vouchered.

Sgt. Delossantos' § 87(2)(g) stated that § 87(2)(b)'s vehicle was never searched at the incident location.

PO Mercedes and PO Chiriboga did not recall if § 87(2)(b)'s vehicle was searched at the location.

PO Foley did not search § 87(2)(b)'s vehicle, and was not aware that this vehicle was searched.

A police officer's search of an automobile must be based on probable cause that the vehicle contains evidence of a crime. Further, the scope of the search must be based on where such evidence is believed to be located within the vehicle, People v. Torres, 74 N.Y.2d 224 (1989) (BR 02).

Once an individual exits a vehicle, if there is no "actual and specific" threat to the safety of the officer, or any further justification to search the vehicle, such a search is unlawful, People v. Hackett, 47 A.D.3d 1122 (App. Div. 2008) (BR 03).

Officers may search the vehicle of an arrested individual when there is probable cause to search the vehicle, and a reasonable nexus exists between the arrest and the probable cause to search, People v. Galak, 81 N.Y.2d 463 (1993).

§ 87(2)(g)

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation B** be *substantiated*.

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first complaint to which #§ 87(2)(b) has been a party (BR 07).
- Sgt. Delossantos has been a member of service for seven years, and has been a subject in three CCRB complaints, and three allegations, none of which were substantiated. § 87(2)(g)

§ 87(2)(g)

[REDACTED]

- CCRB complaints, and eight allegations, none of which were substantiated. § 87(2)(g)

- [illegible]

Investigator: _____

Squad Leader:

Reviewer: